

EPC CONTRACT · SAMPLE

PARTIES

The Employer: Sample Holdings Ltd.

The Contractor: ACME Construction Co.

1. CONTRACT VALUE

The total contract value is USD 5,250,000.00 (Five Million Two Hundred Fifty Thousand United States Dollars), inclusive of VAT.

2. ADVANCE PAYMENT

The Employer shall pay an advance payment of 20% upon mobilization, recoverable from interim payment certificates.

3. RETENTION

A retention of 10% shall be deducted from each interim payment certificate, released 50% on substantial completion and 50% on issue of the Final Acceptance Certificate.

4. LIQUIDATED DAMAGES

In the event of delay attributable to the Contractor, liquidated damages of USD 10,000 per day shall apply, capped at 10% of the Contract Value.

5. OBLIGATIONS

The Contractor shall maintain the works in good condition during the period of this agreement and ensure compliance with all applicable safety regulations.

The Employer shall pay all undisputed invoices within 30 days of receipt.

Both parties shall act in good faith.

6. TERMINATION

Either party may terminate this agreement upon material breach with 30 days written notice.

7. FORCE MAJEURE

Neither party shall be liable for delays caused by events of force majeure including pandemic, war, or natural disaster.

8. DISPUTE RESOLUTION

Disputes shall be resolved through arbitration under ICC rules, seated in London, UK.